Rahul Kumar Tiwari@ Santosh Tiwari vs The State Of Nct Of Delhi on 31 October, 2025

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* IN THE HIGH COURT OF DELHI AT NEW DELHI
+ BAIL APPLN. 3749/2025
RAHUL KUMAR TIWARI@ SANTOSH TIWARI .....Petitioner
Through: Mr
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versus

THE STATE OF NCT OF DELHI .....Respond
Through: Mr. Aman Usman, APP.
CORAM:
HON'BLE MR. JUSTICE RAVINDER DUDEJA
ORDER

% 31.10.2025 CRL.M.A. 29255/2025 (exemption) Allowed, subject to all just exceptions.

This application stands disposed of.

1. This is an application for the grant of anticipatory bail filed on behalf of the applicant/accused Rahul Kumar Tiwari @ Santosh Tiwari in case FIR no. 209/2020, under Sections 420/406/120B, PS CR Park.

2. The Ld. Counsel for the applicant submits that the dispute is purely civil in nature relating to financial transactions and breach of understanding but the complainant has deliberately given it a criminal color by lodging the present FIR.

3. It is submitted that alleged cheated amount of Rs. 15,00,000/- already stands returned to the complainant in the shape of FDRs by the orders of the Sessions Court thereby demonstrating the bonafide of the applicant.

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4. It is submitted that the allegations made are vague, omnibus in nature and the role of the present applicant has been unnecessarily dragged into the matter without any specific or direct evidence to substantiate his involvement.

5. It has been submitted that on 17.12.2021 counsel for the complainant and the applicant submitted before the Sessions Court that they have settled their dispute and shall be signing the memorandum of understanding and upon such statement being given, the Sessions Court granted interim

protection from arrest. However, applicant did not received any summons from the Investigating Officer to join the investigation or from the Court to ensure his presence and thus the applicant was under the impression that the matter has been settled and the proclamation proceedings have been cancelled.

6. With regard to the proclamation proceedings, it is submitted that the Trial Court mechanically passed the order of issuance of NBWs, process under Section 82 Cr.P.C. and wrongly declared the applicant as proclaimed offender in a cavalier manner without any bearing to the mandatory procedure under Section 17(8) and 17(9) Cr.P.C.

7. It is submitted that the main accused namely Vinod Bansal is already on bail and therefore, the applicant is also entitled to grant of bail on parity.

8. Per contra, the Ld. APP has opposed the bail application. He has argued on the line of the status report and further submits that applicant has not joined the investigation and has been declared as proclaimed offender and is therefore, not entitled for the grant of bail. In support of his submission he places strong reliance on the judgment of the Hon'ble Apex Court in the case of Srikant Upadhyay & Others Vs. State of Bihar & This is a digitally signed order.

The authenticity of the order can be re-verified from Delhi High Court Order Portal by scanning the QR code shown above. The Order is downloaded from the DHC Server on 03/11/2025 at 23:31:04 Another 2024 SCC OnLine SC 28 and Serious Fraud Investigating Office Vs. Aditya Sarda (2025) SCC OnLine SC 764.

9. As per the allegations in the FIR, the complainant was induced to pay about Rs. 50,00,000/- in the name of arranging corporate funding. The complainant claims to have met one P.D. Dwivedi through a common acquaintance and thereafter several meetings were held with different persons including the alleged mediators and representatives of certain companies. The complainant states that payment were made in parts i.e. by cheques, RTGS and cash towards the preparation of project reports, booking amounts and alleged expenses for facilitating funding.

10. The complainant allegedly paid Rs. 15,00,000/- to the present applicant Rahul @ Santosh which according to the applicant stood returned to the complainant in the form of FDRs by the orders of the Court. Even if the cheated amount qua the present applicant stood returned, there is no reason why the applicant shall not join the investigation.

11. The status report reveals that repeated notices were served upon the applicant but he failed to appear. Consequently NBWs were obtained against him and proclamation proceedings were initiated and executed against him.

12. Notice under Section 160 Cr.P.C. was also served upon the wife of the applicant but she also did not join the investigation. Co-accused Vinod Bansal confirmed that the applicant had received Rs. 30,00,000/- (Rs. 15,00,000/- in cash & Rs. 15,00,000 via Atharva Enterprises). Charge sheet has been filed against the co-accused Vinod Bansal, P.D. Dwivedi, Mohan Barva and Gaurang Kotecha

while proclaimed offender (PO) challan under Sections 420/406/120B/174A IPC has been filed against the present applicant. In the case of Srikant Upadhyay & Others Vs. State of Bihar & This is a digitally signed order.

The authenticity of the order can be re-verified from Delhi High Court Order Portal by scanning the QR code shown above. The Order is downloaded from the DHC Server on 03/11/2025 at 23:31:04 Another 2024 SCC OnLine SC 28, the Hon'ble Supreme Court elaborately examined the consequences of being declared an absconder/proclaimed person under Section 82 Cr.P.C. on the entitlement to anticipatory bail. The Court clarified that when a person is found to be deliberately avoiding arrest and has been declared an offender/Proclaimed person, it considerably undermines their claim for pre-arrest bail/anticipatory bail.

13. Similarly, in Lavesh v. State (NCTof Delhi), (2012) 8 SCC 730, the Hon'ble Supreme Court held thus:-

> "12. From these materials and information, it is clear that the present appellant was not available for interrogation and investigation and declared as "absconder". Normally, when the accused is "absconding" and declared as a "proclaimed offender", there is no question of granting anticipatory bail. We reiterate that when a person against whom a warrant had been issued and is absconding or concealing himself in order to avoid execution of warrant and declared as a proclaimed offender in terms of Section 82of the Code he is not entitled to the relief of anticipatory bail."

14. The Hon'ble Supreme Court in Prem Shankar Prasad v. State of Bihar, (2022) 14 SCC 516 has observed as under:

> "10.2. Despite the above observations on merits and despite the fact that it was brought to the notice of the High Court that Respondent 2-accused is absconding and even the proceedings under Sections 82/83 CrPC have been initiated as far back as on 10-1-2019, the High Court has just ignored the aforesaid relevant aspects and has granted anticipatory bail to Respondent 2-accused by observing that the nature of accusation is arising out of a business transaction. The specific allegations of cheating, etc. which came to be considered by the learned Additional Sessions Judge has not at all been considered by the High Court. Even the High Court has just ignored the factum of initiation of proceedings under Sections82/83CrPC by simply observing that "be that as it may". The aforesaid relevant aspect on grant of anticipatory bail ought not to have been ignored by the High Court and ought to have been considered by the High Court very seriously and not casually.
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> 10.3 In State of M.P. v. Pradeep Sharma [State of M.P. v. Pradeep This is a digitally signed order.
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> Server on 03/11/2025 at 23:31:04 Sharma, (2014) 2 SCC 171 : (2014)1 SCC (Cri) 768] , it is observed and held by this Court that if anyone is declared as an absconder/proclaimed offender in terms of Section82CrPC, he is not entitled to relief of anticipatory bail...
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> XXX
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> 11. Thus the High Court has committed an error in granting anticipatory bail to Respondent 2-accusedignoring the proceedings under Sections 82/83CrPC."

15. In the most recent decision in the case of Serious Fraud Investigating Office vs. Aditya Sarda [2025 SCC OnLine SC 764], very pertinent observation has been made with regard to the powers of Court to grant anticipatory bail under Section 438 Cr.P.C. It has been observed that:-

> "23. In view of the above settled legal position, it is no more resintegra that economic offences constitute a class apart, as they have deep rooted conspiracies involving huge loss of public funds, and therefore such offences need to be viewed seriously. They are considered as grave and serious offences affecting the economy of the country as a whole and thereby posing serious threats to the financial health of the country. The law aids only the abiding and certainly not its resistants. When after the investigation, a chargesheet is submitted in the court, or in a complaint case, summons or warrant is issued to the accused, he is bound to submit himself to the authority of law. If he is creating hindrances in the execution of warrants or is concealing himself and does not submit to the authority of law, he must not be granted the privilege of anticipatory bail, particularly when the Court taking cognizance has found him prima facie involved in serious economic offences of heinous offences. In such cases when the court has reason to believe that the person against whom the warrant has been issued has absconded or is concealing himself so that warrant could not be executed, the concerned court would be perfectly justified in initiating the proclamation proceedings against him under Section 82 Cr.P.C. The High Courts should also consider the factum of issuance of non bailable warrants and initiation of proclamation proceedings seriously and not casually, while considering the anticipatory bail application of such accused."

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16. It is evident from the bail application of the applicant itself that applicant was aware of the registration of the FIR against him so much so he filed anticipatory bail application before the Sessions Court. Despite such knowledge he did not join the investigation and was declared a proclaimed offender. There has been a consistent disobedience of the applicant to join the investigation.

17. Keeping in view the law and judicial precedents, anticipatory bail shall not be granted to a person who is a declared proclaimed offender except in exceptional circumstances. The present case does not form an exceptional or extraordinary case where the discretionary powers of the Court be exercised. Hence, in light of the cumulative circumstances, applicant is not entitled to seek benefit of pre-arrest or anticipatory bail.

18. The present application is therefore, dismissed.

RAVINDER DUDEJA, J OCTOBER 31, 2025/lks This is a digitally signed order.

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